

Discrimination against job seekers in the labour market: Report on a correspondence experiment in the Czech Republic

Research report of the Public Defender of Rights and
Masaryk University, 2026

Research conducted by Masaryk University



Contents

The Defender's Mission	3
Glossary of terms.....	5
Foreword	7
Summary.....	9
Legal framework	10
1. Prohibition of age discrimination	10
1.1 Prohibition of discrimination	10
1.2 Exceptions to the prohibition of discrimination	11
1.3 Job advertisements.....	13
1.4 Prohibited questions in job interviews	14
2. Limits to effective defence against discrimination.....	15
2.1 Lack of information on the part of job seekers	16
2.2 Indications and evidence of discrimination.....	16
3. Options for defence against discrimination	18
3.1 Complaint to the Public Defender of Rights	18
3.2 Complaint to the Labour Inspectorate	19
3.3 Anti-discrimination action	20
4. Employers' best practice	21
Research on discriminatory conduct in the labour market.....	24
1. Experiment design	24
2. Data source	26
3. Results.....	26
3.1 Age discrimination	27
3.2 Limits of database of vacancies in relation to third-country nationals.....	28



The Defender's Mission

The Defender is independent and impartial. The Defender is accountable to the Chamber of Deputies, which elected the Defender to the office. The Defender has one elected deputy, who can be authorised to assume some of the Defender's competences. The Defender regularly informs the public of the Defender's findings through the media, the Internet, social media, professional workshops, roundtables and conferences. The Defender summarises the most important findings and recommendations in an annual report to the Chamber of Deputies.

The Defender **regularly**

- monitors and promotes the implementation of fundamental rights and freedoms;
- inquires into the procedures of public authorities;
- protects persons in facilities against ill-treatment by carrying out systematic visits to the facilities and monitors the process of expulsion of foreign nationals from the Czech Republic;
- provides assistance to victims of discrimination (promotes the right to equal treatment);
- provides assistance to EU citizens discriminated against on the grounds of nationality (promotes the right of free movement of EU citizens) and
- monitors and promotes protection of the rights of persons with disabilities.

In addition, the Defender has **special powers**. The Defender may

- recommend the enactment, amendment or repealing of a legal or internal regulation and the ratification of an international treaty;
- petition the Constitutional Court to abolish a secondary legal regulation or intervene in proceedings held before the Constitutional Court on the abolition of a legal regulation;
- bring an administrative action to protect the public interest;
- petition the administrative court to annul a measure of general nature; and
- lodge a disciplinary action against the president or vice-president of the court.

The Defender conducts **research and analyses** especially in the following areas:

- fundamental rights and freedoms;
- the right to equal treatment; and



- rights of people with disabilities,
in order to protect and enforce them.



Glossary of terms

Correspondence experiment – a research method in which the researcher elicits and observes the behaviour of the research subject (e.g. employer) in their natural environment exclusively through correspondence (text messages, -emails, letters, etc.).

Discrimination means unfavourable treatment of people in comparable situations

- in one of the areas defined by the law, including the area of work and employment, and
- on the basis of one of the grounds (“protected characteristics”) specified by the law, including age.

In the area of work and employment, there is a broad prohibition of discrimination that covers more or less all situations that job seekers and employees may encounter.

Discrimination is assessed primarily under the Anti-Discrimination Act. In labour-law relationships, it is also covered by the Labour Code and the Employment Act, which contain many references to the Anti-Discrimination Act, and expand on some of its provisions.

Discrimination need not be intentional. What is important is the result, not the intent.

Protected characteristic is a characteristic based on which a person may not be placed at a disadvantage. According to the Anti-Discrimination Act, these characteristics include the following: race, ethnicity, nationality, sex/gender, sexual orientation, age, disability, religion, belief or worldview, and in some cases citizenship (*in Czech: státní příslušnost*). In addition, the Labour Code and the Employment Act define other protected characteristics (such as political belief and trade union membership).

Permissible forms of different treatment are exceptions to the prohibition of discrimination, i.e. situations where it is possible to treat employees differently on the basis of a protected characteristic.

Direct discrimination is the basic type of discrimination. This is an act or omission where someone is treated differently from another person in a comparable situation, based on one of the protected characteristics specified by the law. Discrimination in the area of work and employment does not occur in cases where different treatment is based on an objective ground consisting in the nature of the work performed and the requirements on the given employee are proportionate to this nature.

An example of direct discrimination could be the case of an employer who refuses to employ Roma people.



Indirect discrimination is an act or omission where a group of individuals protected by the law (a group defined by a protected characteristic, e.g. people with disabilities) is put at a disadvantage based on an apparently neutral provision or practice. This provision or practice cannot be reasonably justified. Where indirect discrimination is suspected, it is always necessary to examine whether the contested practice is justified by a legitimate objective and, if so, whether the means of achieving this objective are proportionate and necessary.

Example: The employer provides language training only to full-time employees. This measure may seem unrelated to any protected characteristic. However, if part-time jobs at the employer are held predominantly by parents balancing work and childcare, such a rule may constitute indirect discrimination on the grounds of parenthood.

Harassment is improper conduct that is aimed at or results in diminishing the dignity of a person and creating a hostile, humiliating or offensive environment. If it relates to one of the protected characteristics, this may constitute discrimination.

Example: Colleagues mock an employee for his sexual orientation and repeatedly joke about it in front of him. The employer finds out but downplays the actions of its employees.

An **instruction to discriminate** is an act whereby a person in a position of authority instructs another person to discriminate against a third party.

An **incitement to discriminate** is an act whereby a person persuades, encourages or otherwise motivates another person to engage in discriminatory conduct.

Age is listed in the Anti-Discrimination Act as one of the protected characteristics. Both younger and older employees are protected on the grounds of their age. Employees of pre-retirement and retirement age have a particularly difficult position in the labour market.

Anti-discrimination action (anti-discrimination lawsuit) is an action (lawsuit) by virtue of which the plaintiff asserts their rights under the Anti-Discrimination Act. The plaintiff can claim refrainment from discrimination, remedying the consequences of discrimination, just satisfaction and financial compensation for non-material damage.

Labour Inspection Authorities (State Labour Inspectorate and District Labour Inspectorates) are administrative authorities that monitor compliance with labour-law regulations, including the prohibition of discrimination in the area of work and employment. They may impose remedial measures and fines for breach of legal regulations.



Foreword

Equal access to employment is one of the basic prerequisites of a fair society. When people are disadvantaged in their job search for reasons unrelated to their abilities or qualifications, this not only violates the principle of equal treatment, but also results in the loss of valuable human potential. Discrimination in the labour market is therefore not only a problem for individuals who face it, but also for society as a whole.

In view of the ageing population, I consider it particularly important to pay attention to the position of older people in the labour market. Practice shows¹ that people may encounter obstacles to finding a job as they approach retirement age, that is at a time when they often have years of work experience and a high degree of expertise.

However, the results of this study suggest that age-based disadvantage already manifests among middle-aged people and becomes more pronounced with age.

The Public Defender of Rights was also entrusted by law with the role of the national equality body. In addition to helping individuals, I therefore consider it important to pursue systematic discrimination monitoring and research. Only with reliable data on how labour market discrimination actually operates can we identify effective ways to prevent it.

One of the tools that makes it possible to detect less visible forms of discrimination is situation testing. This experimental method allows us to observe employers' behaviour in real-life situations and compare their responses to job seekers. This approach is commonly used abroad, with relatively limited use in the Czech environment. I therefore consider it important to further develop this methodology and promote its use in the study of discrimination.

The present study uses this method. Through a correspondence experiment, it monitors whether certain characteristics of job seekers affect the likelihood of employers responding positively to their job applications. The survey focuses primarily on whether job seekers in the Czech labour market encounter age-based disadvantage as early as middle age.

I very much appreciate the cooperation with Masaryk University, whose research team carried out the experiment. I believe that bringing together public administration institutions and academia is very valuable. It helps us better understand the operation of the labour market and the forms of discrimination.

1 Research Institute of Labour and Social Affairs. Nový policy brief z RILSA: o věkové diskriminaci na trhu práce (*New RILSA policy brief: on age discrimination in the labour market*). Online, update. 29 January 2026. Available at: <https://www.rilsa.cz/2026/01/novy-policy-brief-z-rilsa-o-vekove-diskriminaci-na-trhu-prace/> [retrieved on 2026-04-28].



I believe that this survey report will contribute to a better understanding of the obstacles some people may face when looking for employment. The findings can stimulate expert discussion, public policy making and reflection of employers' practice. Indeed, equal treatment is not only a legal obligation – it is a prerequisite for a fair and efficient labour market.

JUDr. Vít Alexander Schorm
Deputy of the Public Defender of Rights and Defender of
Children's Rights



Summary

The study showed that

- **discrimination on grounds of age in the search for employment is already evident among middle-aged people**, although it is relatively mild and differences in employers' responses are likely to be related to the labour market segment in question;
- **job seekers with Czech citizenship are substantially less likely to receive positive responses when applying for vacancies advertised as suitable for third-country nationals.**

The findings are relevant both to research and to public policy-making. They indicate that

- **discrimination in the labour market** on the grounds of age does not affect only the oldest and youngest groups of job seekers, as is commonly recognised, but also **middle-aged people**;
- in reality, some of the advertised vacancies in the database of the Labour Office of the Czech Republic may not in practice be open to all job seekers;
- the database of vacancies kept by the Labour Office of the Czech Republic need not fully reflect the actual structure of labour demand;
- **when planning employment policies, the State may be working with incomplete and systematically biased information.**

The research also demonstrated that a **correspondence experiment can be an effective tool for detecting less visible forms of discrimination in the labour market.**



Legal framework

The selection of a new employee falls within the employer's competence. The employer can decide how to reach out to potential job seekers and what criteria to apply in the selection of an ideal new employee.² However, the employer should assess individual candidates in terms of qualifications, necessary requirements and/or special abilities.³ An important limit to the employer's freedom is, among other things, the prohibition of discrimination – save for certain exceptions, a job seeker cannot be rejected solely on the grounds that they are, e.g., a Roma, a woman or an elderly person.

1. Prohibition of age discrimination in recruitment

1.1 Prohibition of discrimination

The right to equal treatment and non-discrimination on grounds of age in recruitment is enshrined in the Czech legislation primarily in the **Anti-Discrimination Act**.⁴ This Act defines various forms of discrimination, provides for exceptions to the prohibition of discrimination ("permissible forms of different treatment") and sets out legal remedies for protection against discrimination. The Employment Act⁵ and laws governing service relationships also prohibit discrimination in access to employment.

Direct discrimination is the form of discrimination most frequently encountered in access to employment. **Direct discrimination** is the basic type of discrimination. This is an act or omission whereby a person is treated differently from another person in a comparable situation, based on one of the protected characteristics specified by law. An example of direct discrimination is an employer rejecting a job seeker because of their age.

The Defender dealt⁶ with a provision of a collective bargaining agreement stating that the Employer would fill vacancies or new job positions with employees of "productive age". According to the Defender, this provision is at variance with the prohibition of

2 In some cases, the selection of new employees is regulated in more detail by the legal regulations. This is particularly the case when civil servants are recruited to service relationships.

3 This is based on Section 30 (1) of the Labour Code.

4 This is without prejudice to the fact that the prohibition of discrimination also follows from the constitutional order and international treaties binding on the Czech Republic, as well as from EU law.

5 Sections 4 and 12 (2) of the Employment Act.

6 Public Defender of Rights' Report on Inquiry of 6 June 2016, File No. 182/2013/DIS/VP, [eso.ochrance.cz](https://www.eso.ochrance.cz).



discrimination and the part excluding employees of other than productive age from the offer of new positions should be disregarded.

In addition to direct discrimination, **indirect discrimination** is also prohibited. Indirect discrimination differs from direct discrimination in that the ground on the basis of which the employer distinguishes between job seekers (an apparently neutral criterion or practice) is different from the protected characteristics listed in the Anti-Discrimination Act or the Employment Act. However, differentiation on the basis of this ground will result in a disadvantage for a group protected by the law (e.g. older employees). In practice, the courts and the Defender deal quite rarely with indirect discrimination in job recruitment; cases of direct discrimination are more common.

Incitement⁷ and **instruction**⁸ to discriminate are also considered forms of discrimination. The Anti-Discrimination Act thus also applies to situations where discrimination occurs on the basis of a formal or informal instruction. In this way, it is possible to hold the actual perpetrator of the discrimination accountable.

The Defender inquired⁹ into the selection procedure for the position of a headteacher. After her term of office expired, the complainant – a headteacher of a secondary school – re-applied for the position. However, the founder did not re-appoint the complainant to the position after the selection committee did not recommend her as a suitable candidate. The complainant learned that the reason for the committee's negative recommendation was her retirement age. If this conduct could be proven, the committee's negative recommendation would constitute discrimination in the form of incitement to discrimination.

When seeking a new job, older people may also encounter inappropriate comments about their age. Should there be more of these comments or should the employer be overtly offensive towards the job seekers, this could constitute discrimination in the form of **harassment**.

1.2 Exceptions to the prohibition of discrimination

It follows from the above legislation that job seekers cannot, in principle, be rejected on the grounds of age. However, the law also reflects the fact that the age of an employee may be relevant in some cases and therefore provides exceptions to the prohibition of discrimination (permissible forms of different treatment).

7 Incitement to discriminate means conduct whereby a person persuades, reinforces the conviction of, or incites another person to discriminate against a third party (Section 4 (5) of the Anti-Discrimination Act).

8 Instruction to discriminate means conduct whereby a person abuses the subordinate position of another person in order to discriminate against a third party (Section 4 (4) of the Anti-Discrimination Act).

9 Report of the Public Defender of Rights on a case where discrimination was not found of 22 June 2021, File No. 4423/2020/VOP, [eso.ochrance.cz](https://www.eso.ochrance.cz).



The employer may set a certain **minimum age, professional experience or length of employment requirement if compliance with such a requirement is a necessary prerequisite for a proper performance of the job**. These requirements disadvantage primarily young job seekers who, because of their age, have not had the opportunity to gain the experience required. However, it is only natural that previous experience is essential for some positions, and employers cannot afford to hire an inexperienced employee who will learn on the job.

A minimum age or experience cannot be required for positions where it makes no sense in the context of the work performed. Typically, this may be true of simple manual work and jobs where lower qualification is sufficient. The requirement for a minimum age or experience should in no way be used to avoid employing young people due to the employer's stereotypical thinking.

Another exception to the prohibition of discrimination on the grounds of age applies to older employees. The exception concerns cases where an employee must **undergo professional training** before being able to properly perform the work offered. **If the time for completing this training would be disproportionately long in view of the time when the job seeker reaches retirement age, the employer may reject the job seeker**. The employer can thus avoid a situation where they invest time and money in training and onboarding an employee, but the employee will only stay with the employer for a short time after completing the necessary training. That being said, the length of the training required must always be assessed *ad hoc* in relation to the job seeker's age – again, this exception cannot serve as a catch-all excuse for rejecting older job seekers.

Example: An employer is seeking a new production worker for their factory. Once accepted, the selected job seeker will attend a one-week "course", during which they will be introduced to the factory's operations and the working procedures at the individual production positions. If the employer rejected a 60-year-old job seeker with reference to the length of this training course, this would constitute discrimination.

Even in the case of age, a different treatment is permissible if there is an objective ground for different treatment consisting in **the nature of the work or activity performed** and the **requirements applied are proportionate to that nature**. Age as such is not generally relevant to the performance of work. However, certain characteristics that may be important for some jobs are closely related to age. This is true, for example, of **appearance**, which can be important especially for some artistic professions.

Example: When casting a movie role of a high school student, the producer may turn down an actor who is over thirty.

Physical strength is also usually linked with age. However, European case law shows that rejecting a person solely on the grounds of their age with reference to gradual



decline in physical strength is only possible in exceptional cases. The Court of Justice of the European Union has dealt primarily with the age limits for acceptance into service relationships, in the case of the Czech Republic these age limits are set by the law (e.g. in the case of firefighters or police officers). In the case of private employers, it will generally constitute discrimination if they reject a job seeker solely on the basis of information about their age, citing a decline in physical strength. Employers should therefore evaluate each job seeker individually. A job seeker may, of course, be rejected, if they are indeed physically unable to perform the work offered. However, this does not mean that the same applies to every job seeker of the same age.

The Defender dealt¹⁰ with the case of a complainant who applied for a position in a company operating in the automotive industry. The complainant had several phone conversations with agency recruiters, who rejected him due to his advanced age, citing that work in the automotive industry was physically demanding. Discrimination was not found in this specific case.

1.3 Job advertisements

Employers must also not discriminate when writing job advertisements. **It is discriminatory if the wording of a job advertisement makes it clear that the employer does not want to employ a particular group protected by the prohibition of discrimination – e.g. older employees.** In such a case, people for whom the job is not intended (according to the advertisement) will most likely not apply at all, which is understandable. The prohibition of discrimination in the wording of job advertisements therefore complements the prohibition of discrimination in the actual selection of new employees, in order to ensure protection against an unjustified disadvantage in the area of access to employment.

The Employment Act states that employers must not make job advertisements that are “discriminatory in nature”.¹¹

This does not apply if the advertisement falls under one of the exceptions where an employer can select employees on the basis of a protected characteristic – in such a case, the requirement regarding, for example, the job seeker’s age may be stated in the advertisement.

The Defender dealt with a case where an employer had already made it clear in the wording of an advertisement that they would not be interested in employing younger employees. The employer was looking for a new wellness receptionist, stating that “due to the unreliability and volatility of young ladies”, the employer preferred women

10 Report of the Public Defender of Rights on a case where discrimination was not found of 26 February 2025, File No. 4349/2023, eso.ochance.cz.

11 Pursuant to Section 12 (1)(a) of the Employment Act.



between 25 and 40 years of age. The Defender concluded that even younger employees could perform the job well. According to the Defender, the employer committed discrimination on the grounds of age (the text of the advertisement disadvantaged both younger and older employees) and gender (the employer explicitly stated that they were only looking for women).¹²

Ideally, when formulating job advertisements, employers should avoid wording that does not directly exclude a certain group of employees but may discourage them from applying. For example, if a young team is listed as one of the benefits, older job seekers may feel that they are not welcome in the team. While such a wording will not always violate the prohibition of discrimination (in the sense that the employer could be e.g. fined by the Labour Inspectorate), it is at least inappropriate.

The Defender was contacted by a complainant who considered the wording “young team of enthusiasts looking for a colleague” to be discriminatory. Although the Defender consistently advises employers against highlighting a young team as a benefit, as this could discourage older job seekers, he did not find the given case discriminatory. The overall message conveyed by the advertisement did not imply that the employer was not interested in employing older people.¹³

1.4 Prohibited questions in job interviews

In addition to the prohibited use of discriminatory criteria in the selection of employees, **employees are also protected against being placed at an unjustified disadvantage in that employers should completely avoid seeking certain information about employees.** Under the Labour Code, an employer **may only ask the candidates or other persons (for example, a former employer when requesting a reference) to provide information that is directly relevant to the conclusion of the employment contract.**¹⁴ The Employment Act also explicitly states that employers may not, in principle, request certain information (e.g. on the job seeker’s religious beliefs) and **personal data unrelated to the performance of the employer’s duties stipulated by a special regulation.**¹⁵ During recruitment, employers process personal data of job seekers, which means that their procedures are also subject to the regulations

12 Letter of the Public Defender of Rights of 20 February 2019, File No. 299/2019/VOP, available at: <https://eso.ochrance.cz/Nalezene/Edit/9650>.

13 Letter of the Public Defender of Rights of 13 February 2018, File No. 897/2018/VOP, available at: <https://eso.ochrance.cz/Nalezene/Edit/6386>.

14 Section 30 (2) of the Labour Code.

15 Section 12 (2) of the Employment Act.



governing the protection of personal data, especially the General Data Protection Regulation (GDPR).¹⁶

As a rule, employers should not ask for information on the job seekers' age.

However, this protection is significantly limited by the fact that employers usually discover a job seeker's age through other means (e.g. from the date of completion of studies listed in their CV, or from the job seeker's appearance).

Older job seekers may also encounter questions about their **medical condition** during interviews. In most cases, even these questions are inadmissible.¹⁷ Information on medical condition belongs to special categories of personal data (formerly "sensitive personal data") and, as such, its processing is subject to increased protection.¹⁸ Employers should in no case seek detailed information on a job seeker's diagnosis. Although assessment of the medical fitness for work is part of the recruitment process, this assessment is generally carried out as part of an occupational medical examination carried out by a physician, who therefore may request information on the job seeker's medical condition. From the report on medical fitness, the employer will only learn whether or not the job seeker is fit to perform the work offered. The report does not contain information on the medical condition ascertained by the doctor.

If the employer has doubts as to whether the job seeker would be able to perform the job offered for health reasons, the employer may inform the job seeker of the working conditions – in fact, this is one of the employer's obligations.¹⁹ The job seeker can then assess themselves whether the job would be suitable for them.

2. Limits to effective defence against discrimination

Although legal regulations prohibit discrimination, this does not mean that discrimination does not occur. As demonstrated in the experiment described below, discrimination can be detected using certain research methods. In everyday life, however, discrimination often remains hidden. Often, the job seeker never learns that an employer rejected them because of their age. Even when the job seeker has this information, it is usually very difficult to seek effective protection against discrimination, as discrimination is difficult to prove.

16 Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

17 See also Chapter 8.2 of the Survey Report of 16 March 2021, File No. 23/2020/OZP, available at: <https://eso.ochrance.cz/Nalezene/Edit/9078>.

18 Article 9 of the GDPR.

19 Section 31 of the Labour Code.



2.1 Lack of information on the part of job seekers

There are several ways in which employers recruit new employees. For some positions, employers approach potentially suitable candidates directly. However, most often employers post a job advertisement and invite job seekers to apply. The initial selection among the applicants then takes place on the basis of the CVs received. As information on age can be determined, or at least inferred, from the CV, discrimination can occur already at this stage.

In these cases, discrimination is particularly hard to detect. **Only very rarely do employers inform rejected applicants of the reasons for their decision. The law does not impose any such duty on them. It is therefore up to the employers how they will communicate** with the applicants. In practice, it is common for employers not to respond to CVs at all (“ghosting”). This approach has a particularly negative impact on the applicants concerned, as they may lose time waiting for the employer’s response and postpone further active job searching. Repeated experiences of ghosting may also result in a loss of confidence and eventually lead applicants to give up. In the best-case scenario, employers respond to unsuccessful applicants. However, a polite answer along the lines of “thank you for your interest, but we have chosen a different candidate” is practically irrelevant for the purpose of establishing and proving any discrimination. The applicant still does not know why they were rejected and whether their age played a role in the decision.

If the job seeker passes this initial selection, this does not mean that they will no longer face discrimination. The conduct of an employer who does not rule out an older job seeker in advance and, for example, invites them to an interview, but ultimately selects a younger candidate because of their age, also constitutes discrimination.

An unsuccessful applicant rejected later in the selection process has more information available to them. An applicant who attends an interview can gain a clearer understanding of the employer’s specific requirements for the given position, whether they meet these requirements and whether they succeeded in convincing the employer of their qualities. However, even in this case, if an applicant is rejected, the employer is not required to justify their decision. The applicant usually does not even know whether the employer ultimately selected anyone and, if so, whom. Thus, the applicant usually still lacks sufficient information to conclude whether their age played any role in the employer’s decision.

2.2 Indications and evidence of discrimination

Older job seekers find that they apply for jobs for which they believe they are well qualified, only to be rejected by the employer. If this occurs repeatedly, they may begin to suspect that employers are rejecting them based on their age.

However, such a suspicion alone is not sufficient if the job seeker wishes to defend themselves against discrimination. In some cases, the very fact that a protected group



is disadvantaged gives rise to a strong suspicion that discrimination has indeed occurred. An example would be a situation where an employer provides benefits to all its employees except those receiving old-age pension. This does not apply in the context of recruitment. **The employment selection procedure is selective by its very nature – out of a larger pool of persons, only one person or a small group of persons will ultimately succeed. The selection of one applicant from among several candidates for a single vacancy cannot, in itself, constitute discrimination.** A rejected applicant will always belong to some protected group (man/woman or older/younger person). **To establish discrimination, it is not enough to merely prove that the alleged victim of discrimination was treated less favourably (i.e. was not selected for the position), but they must also assert additional suspicious circumstances.**²⁰

Furthermore, even if a rejection by several employers seems suspicious, this fact does not give rise to suspicious circumstances for each employer individually. **Suspicious circumstances must therefore be assessed separately in relation to each selection procedure or employer.**

The Defender is often approached by older people who have been unable to find suitable employment for prolonged periods of time. Even if they apply for positions for which they meet the employer's requirements, they are rejected. The complainants are convinced that they are being rejected due to their age. In some cases, they merely describe their efforts to find a new job, in others, they provide copies of advertisements to which they responded or rejection letters from some employers. These complaints are very difficult to inquire into. While it is possible that the complainant's age played a role for some employers, this information cannot be used to accuse a specific employer of discrimination. The Defender thus examines the matter further only if there are other suspicious circumstances in the selection procedure in question.

Suspicious circumstances may include, *inter alia*, unfair course of the procedure, discrepancies in the employer's statements, a change in the requirements for the given position or the fact that the employer hired a less-experienced job seeker. However, each case must be assessed individually – for example, it cannot be concluded that hiring a younger applicant who did not meet all the requirements set out by the employer in the advertisement automatically constitutes discrimination. This fact could also have a legitimate (non-discriminatory) reason.

²⁰ See also Boučková, P., Havelková, B., Koldinská, K., Kühnová, E., Kühnová, Z., Whelanová, M. Antidiskriminační zákon. Komentář (*Anti-Discrimination Act. Commentary*). 2nd edition. Prague: C. H. Beck, 2016. Commentary on Section 14 or judgement of the Constitutional Court of 8 October 2015, File No. III ÚS 880/15.



An applicant can be sure that they have been discriminated against especially if the employer itself informs them that they have not been selected due to their age. Such cases do occur in practice.

Even in such a situation, the applicant may be in a position where they know that they have been discriminated against, but the discrimination is difficult to prove and effectively defend against. Nowadays, there is a relatively widespread awareness of the prohibition of discrimination, so employers usually do not disclose a discriminatory motive to applicants other than orally. The employer's representatives would likely deny such conduct if they were to testify in court or provide a statement to the Labour Inspectorate.

Employer's written statement (e.g. an email reply to a CV, in which the employer states that it has selected a younger applicant) or an audio recording of the interview can serve as strong evidence in discrimination disputes. While making a covert recording may be unpleasant for most people, it is often the only way to prove discrimination. If such a recording is made for the protection of rights and does not concern the privacy of the persons being recorded, it can usually be used by the applicant to protect themselves against discrimination.

3. Options for defence against discrimination

Victims of discrimination have three main options of defending themselves against discrimination. Each of these options has its advantages and disadvantages.

3.1 Complaint to the Public Defender of Rights

Pursuant to the law, the Public Defender of Rights provides methodological assistance to victims of discrimination.

If a job seeker approaches me with a complaint concerning discrimination, I can assess whether the described situation could amount to discrimination (i.e. conduct defined by law). I also advise the complainant on how they can seek protection against discrimination.

An advantage for the complainant lies in the fact that the complaint to the Defender is **free of charge** and their case will be examined by lawyers who have extensive experience in the field of non-discrimination. Another advantage is the **informal nature of communication** between the Defender and the complainant. The complainant usually receives an evaluation of their case **without much delay**.

The main disadvantage is that the law does not grant the Defender the means for determining the facts of the case and obtaining evidence of discrimination. For example, in cases of alleged discrimination, I cannot visit the employer and perform an inspection at the workplace. In assessing the case, I thus rely primarily on the information and underlying documents provided by the complainants. However, as



follows from the above, this information is often limited in cases of discrimination in access to employment. If there is at least some evidence giving rise to a reasonable suspicion of discrimination, or if such evidence can be obtained, I can inquire into the case in more detail. In such cases, with the consent of the complainant, I will contact the employer. However, the employer is not obliged to comply with my request for a statement.²¹

The result of my assessment is **non-binding**. This means that if I conclude that discrimination has indeed occurred, the employer need not take any action based on my conclusion. However, the complainant may use it in court proceedings or in a pleading to the Labour Inspectorate.

The Defender is **not authorised to represent victims of discrimination in court**.²²

3.2 Complaint to the Labour Inspectorate

Compliance with labour-law regulations, including compliance with the prohibition of discrimination, is supervised by labour inspection authorities (District Labour Inspectorates and the State Labour Inspectorate).

The Inspectorates inquire into discrimination in access to employment primarily on the basis of complaints. Victims of discrimination can therefore request the Labour Inspectorate to perform an inspection. **However, the Inspectorate is not obliged to grant the request.** The Inspectorate will not perform an inspection if it is clear from the complaint itself that the inspection would not be effective (e.g. the complainant does not provide any specific information on the alleged discrimination).

During an inspection of the employer, inspectors may exercise their relatively broad powers – they may enter the workplace without prior notice, request documents, ask for explanations and interview employees without the employer's presence. The employer is obliged to co-operate with the inspectors. **Unlike the Defender, inspectors thus have the means to determine the facts of the case.** However, even inspectors may find themselves in a situation where it is still not possible to establish discrimination in the area of access to employment or substantiate their finding with relevant evidence. When investigating this type of discrimination, inspectors must rely primarily on the employer's statement as documentary evidence is often missing. **If the employer provides the inspectors with an explanation as to why they did not hire a specific applicant, this information is often impossible to further verify.** For example, inspectors usually cannot subsequently verify whether the applicant

21 The Defender's powers will change in the future in connection with the transposition of Council Directive (EU) 2024/1499 of 7 May 2024 on standards for equality bodies and Directive (EU) 2024/1500 of the European Parliament and of the Council of 14 May 2024 on standards for equality bodies in the field of equal treatment between women and men into national law.

22 Even this may change with the transposition of the EU directives into national law referred to in the previous footnote.



appeared incompetent, arrogant or too nervous during the interview. The inspection can thus result in a situation where the **employer's claims contradict those of the unsuccessful applicant**, leaving the inspector unable to resolve the conflicting statements. In such a case, the inspector cannot state that discrimination has occurred.

If the Inspectorate succeeds in ascertaining discrimination, it will state this fact in the inspection record. However, this record is not sent to the complainant. **The Inspectorate is obliged to inform the complainant in writing of the result of the inspection performed in relation to the complainant.**

On the basis of the findings of the inspection, the Inspectorate may conclude that the employer has **committed an infraction**. Infractions in the area of equal treatment are defined in the Employment Act and in the Labour Inspection Act.²³ Employers may be fined for violating the prohibition of discrimination especially if they **reject a job seeker on the basis of a protected characteristic** or if they **publish a discriminatory job advertisement**. The fine can be up to CZK 1,000,000.²⁴

The Inspectorate cannot order the employer to hire the victim of discrimination, to apologise to them or pay them financial compensation. However, the complainant can use the facts set out in the information on the result of the inspection as a guideline as to whether it makes sense to seek further protection against discrimination, especially whether to file an anti-discrimination action. A fine imposed on the employer may also provide a certain satisfaction.

3.3 Anti-discrimination action

The Anti-Discrimination Act provides for the possibility of filing an anti-discrimination action as a means of seeking protection against discrimination.

In general, this type of action can be used to claim refrainment from discrimination, remedying the consequences of discrimination, apology and financial compensation for non-material damage. **Where discrimination in access to employment is alleged, the plaintiff can normally seek only an apology and financial compensation.** While it cannot be ruled out that the plaintiff could seek the conclusion of an employment contract as a remedy where discrimination was demonstrably the sole reason for their rejection,²⁵ I am not aware of any decision where such a claim was successful.

With regard to proving discrimination, a major advantage is the **sharing of the burden of proof** in proceedings on an anti-discrimination action. This modification to the

23 Section 139 (1)(a) and 140 (1)(a) of the Employment Act and Sections 11 and 24 of the Labour Inspection Act.

24 Section 140 (4)(a) of the Employment Act.

25 See Resolution of the Constitutional Court of 19 February 2021, File No. II. ÚS 1148/20, available at <http://nalus.usoud.cz>.



standard rules of evidence was introduced for discrimination disputes on the basis of general experience that obtaining relevant evidence in these cases is often practically impossible, as it is usually in the hands of the defendant. Victims of discrimination thus need not prove the unprovable (the defendant's discriminatory motive). **In practice, sharing the burden of proof means that if the plaintiff states before the court facts from which it can be inferred that the defendant directly discriminated against the plaintiff on the grounds of their age in access to employment, the defendant is required to prove that they did not violate the principle of equal treatment.**²⁶ When the burden of proof is shared, it is up to the employer to assert and prove that they rejected the plaintiff for reasons other than the plaintiff's age. If the employer fails to do so or is unable to prove non-discriminatory grounds for its decision, the court will rule that discrimination has occurred. As follows from the above, in order to share the burden of proof, the plaintiff should claim further suspicious circumstances other than their failure in the selection procedure.

The disadvantage of discrimination disputes is that the court proceedings **can last several years**. Litigating these disputes is therefore also associated with **financial risk**. In particular, if the claim is unsuccessful, the plaintiff may be required to reimburse the counterparty's legal costs, which can be substantial.

The plaintiff may thus find it very difficult to decide whether to file an anti-discrimination action. **The outcome of court proceedings is almost always uncertain**, as the plaintiff cannot predict what the counterparty will argue in court.

4. Employers' best practice

Discrimination in the selection of new employees is often due to stereotypes. At the same time, one has to admit that all of us follow stereotypes to a greater or lesser extent, i.e. we use prejudiced or overly simplified and generalised perceptions about an entire group of people. To some extent, stereotyping is natural to the human mind. Some stereotypes may be so preconceived that we are not even aware of how much they influence our actions.

Stereotypes can limit us in our private lives, as they may place us at a disadvantage or make us deprive ourselves of the opportunity to get to know a person better. However, in terms of the right to equal treatment, stereotypes become problematic when they "enter the workplace" and the employer decides on the choice of new employees on the basis of these stereotypes – then the employer may commit discrimination. It is therefore important to admit the possibility of stereotypical thinking and try to eliminate the influence of one's own stereotypes.

If the employer decides to discriminate in the selection of employees, there is little that can be done in practice to prevent such conduct. However, I believe that

²⁶ Pursuant to Section 133a of Act No. 99/1963 Coll., the Code of Civil Procedure.



discrimination is often not motivated by ill intent. On the contrary, it may be a consequence of the employer's omission. Therefore, the Defender has previously issued a recommendation²⁷ to employers who want to avoid discriminating against their employees. I provide below some tips for employers on recruitment. However, discrimination does not occur only in the selection of employees; for more tips on how to be a fair employer, please refer to the Defender's recommendation.²⁸

Tips for employers who want to avoid discrimination and be welcoming to older job seekers:

- ! Avoid ghosting. If possible, send at least a short answer to each applicant.
- ! If an unsuccessful job seeker approaches you with a request for feedback on why they have not been selected, try to accommodate their request. This will prevent suspicion that your procedure was discriminatory. You can help the applicant improve and increase their chances in the next selection procedure.
- ! Multiple people should participate in the selection process. The ideal option is to involve persons with various life experiences.
- ! It is advisable to draw up a list of evaluation criteria in advance. Save for certain exceptions, these criteria should not include protected characteristics. In respect of criteria whose application could result in placing a group protected by the Anti-Discrimination Act at a disadvantage, it is always advisable to carefully consider whether the required characteristic is actually necessary for the performance of the job. The list must be followed.
- ! Try to ignore the first impression, which is usually unreliable. Evaluators should discuss the pros and cons of each job seeker among themselves. Each evaluator should be able to justify why they support or do not support a particular job seeker. This justification is particularly important in cases where there is no clear reason (e.g. lack of experience) for the evaluation but the evaluator "did not like" the job seeker or was "not impressed" by the job seeker (although, of course, the impression that a job seeker makes during the interview is an important criterion for the selection of a new employee).
- ! The employer should make it clear to evaluators who are in a subordinate position (typically employees of the HR department) that discrimination is unacceptable in the selection of new employees. In practice, these employees may exclude, e.g. job seekers of pre-retirement age, because they assume that is what the employer wants.
- ! There are certain prohibited questions that should not be asked during an interview. If one of the evaluators asks these questions, it may indicate their bias.

27 Recommendation of the Public Defender of Rights of 7 December 2023, [File No. 68/2021/DIS](#).

28 See footnote 27.



- ! Some applicants may have specific requirements already during the selection procedure due to health problems. For example, they may need a larger font in a written test. If possible, try to meet these requirements.
- ! When designing an offer of benefits, it is also good to consider the needs of older employees. An older applicant may also appreciate the possibility to work part-time. In this case, the employer can benefit from a discount on social insurance. The age limit is set at 55 years. For more information, go to the [website of the Czech Social Security Administration](#).²⁹

29 Česká správa sociálního zabezpečení (*Czech Social Security Administration*). Sleva na pojistném (*Discount on insurance contributions*). [online]. 2023 [retrieved on: 2023-10-09]. Available at: <https://www.cssz.cz/slevy-na-pojistnem>.



Research on discriminatory conduct in the labour market

Although discrimination in the labour market is prohibited by law, it has not yet been completely eradicated. In order to combat discrimination effectively, it is essential to understand its nature and extent, and such information can be obtained through systematic research.

This chapter presents the design of the correspondence experiment, the data source and the main findings of the study.

The correspondence experiment was conducted in co-operation between Masaryk University and the Office of the Public Defender of Rights and the Defender of Children's Rights. Its implementation was approved by the Research Ethics Committee of Masaryk University on 18 September 2025 (Reference No. EKV-2025-112). The experiment was designed in accordance with ethical standards for research involving human subjects, while ensuring data anonymity and confidentiality. This study could not have been carried out without the excellent technical support provided by Dominik Dvořák and Klára Moravcová from Masaryk University. This study was conducted with the support of the Ageing of the Population and Related Challenges for Health and Social Systems (AGEING-CZ) project, registration number CZ.02.01.01/00/23_025/0008743, financed by the ERDF/ESF.

The principal authors are:

- **Luca Fumarco**, Masaryk University, IZA;
- **Štěpán Mikula**, Masaryk University, IZA, stepan.mikula@econ.muni.cz.

1. Experiment design

To map discriminatory behaviour in the labour market, we used the correspondence experiment. During the experiment, communication between job applicants and employers takes place exclusively by email, which excludes other influences (e.g. personal presentation) that are not examined. It is thus possible to precisely test whether certain characteristics of the job seeker affect the likelihood of the employer's positive response.

The aim of the study was to test for age discrimination in the initial contact between a job seeker and an employer in the Czech Republic. Fictitious applicants with suitable professional profiles applied for real job vacancies published in the database of the Labour Office of the Czech Republic.



In total, we created 10,138 CVs and used them to apply for real vacancies. Education and work experience were always adapted to the requirements of the specific advertisement.

All the fictitious applicants were men with a common Czech name residing near the place of work. We indicated age indirectly through the year of completion of the highest education attained. The job seekers in the experiment were 40 to 55 years old (i.e. middle-aged persons).

We systematically included additional information in CVs designed to signal general cognitive abilities without being directly related to qualifications for the position. We tested two areas of cognitive abilities, each at three levels:

- Analytical skills:
 - no mention;
 - a chess player;
 - a very good chess player with a high ranking on chess.com.
- Language skills:
 - no mention;
 - certified basic knowledge of Portuguese;
 - certified advanced knowledge of Portuguese.

The aim was to determine whether these “cognitive abilities signals” would influence employers’ willingness to contact the job seekers, and how they might affect potential age discrimination.

All CVs had a uniform structure and graphic design and were sent by email as PDFs. The emails were sent on business days during the usual working hours. We archived the employers’ answers and then manually coded them as positive or negative.

For ethical reasons, we selected only one advertisement per employer to minimise their administrative burden.³⁰

³⁰ The requirements for ethical conduct of correspondence experiments generally limit the number of CVs sent to one employer and thus virtually exclude testing for the presence of discriminatory conduct at the level of an individual employer.



2. Data source

The experiment used a database of vacancies administered by the Labour Office of the Czech Republic, where employers may voluntarily register vacancies. The database is:

- publicly available;
- also used by commercial job portals;
- the only state source of data on labour demand.

However, it should be noted that the database is not representative of the labour market as a whole. Registration of vacancies is voluntary and employers use it only if they consider it beneficial. As a result, the job advertisements concern mainly lower-skilled occupations and selected sectors, such as manufacturing, wholesale and retail, and construction.

However, the advantage of the database is that it enables sorting positions according to:

- economic activity sector (NACE classification — Nomenclature statistique des activités économiques dans la Communauté européenne);³¹
- type of occupation (ISCO classification – International Standard Classification of Occupations);
- place of work;
- information on whether the position is identified as suitable for third-country nationals.

3. Results

For each of the 10,138 CVs, we monitored whether employers responded positively. We defined a positive response as, for example, an invitation to an interview, a request for further contact, or a request for additional information. Responses were coded as negative in cases of explicit rejection, a lack of a response, or a reply showing no interest in further communication. Overall, employers responded positively to 18.3% of the applications.

It should be borne in mind that the primary objective was to test for discrimination on the grounds of age – are older applicants less likely to receive a positive response than younger applicants within the studied age group?

31 This requires connection of the Labour Office database with the Register of Economic Entities administered by the Czech Statistical Office.



To evaluate the results, we used a regression analysis that allows for taking into account control variables that can affect the probability of a positive response:

- economic activity (NACE);
- type of occupation (ISCO);
- workplace region;
- date of sending the email;
- employer's email domain (due to possible evaluation of the email as spam).

Consequently, the regression analysis compares applicants who differ only in the signal (see below), while simultaneously filtering out the effect of the control variables.

The model also included variables encoding the signal sent in the CV of fictitious job seekers to employers:

- age of the applicant;
- whether the position was identified as suitable for foreigners (type of advertisement);
- level of signalled cognitive abilities (playing chess, knowledge of Portuguese).

We tested the estimated regression coefficients for statistical significance. The concept of statistical significance makes it possible to test whether the variables systematically affect the probability of obtaining a positive response from the employer. Statistically significant coefficient estimates for variables encoding signals (age and suitability of the job for foreigners) thus indicate the possible presence of discrimination.

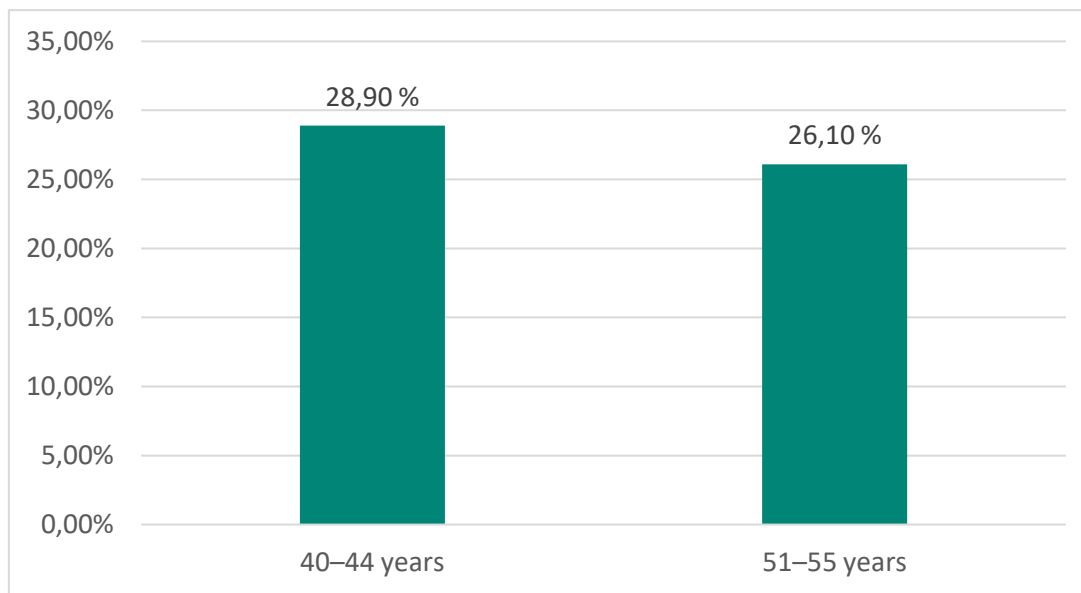
3.1 Age discrimination

We analysed the age effect for positions that were not identified as suitable for foreigners (a total of 4,280 positions).

We found that:

- applicants aged 40–44 received a positive response in 28.9% of cases;
- applicants aged 51–55 in 26.1% of cases.

Chart 1 Probability of response based on age (N = 4280)



The results of the regression analysis showed that with every year of the fictitious candidate's age, the probability of a positive response from the employer is reduced by approximately 0.3%. The overall difference between the youngest and oldest groups was approximately 4 to 5%, taking into account all control variables.

We were also unable to prove that the signalled cognitive skills (chess, knowledge of Portuguese) had a statistically significant effect on the probability of a positive response – these skills thus have no significant effect on the probability of the employer's positive response. This need not mean that employers do not reflect the cognitive abilities of job seekers. We merely did not measure any statistically significant response to the cognitive signals used.

It should be emphasised that only people aged 40–55 were tested. Consequently, the results cannot apply to significantly younger or older applicants.

3.2 Limits of database of vacancies in relation to third-country nationals

The experimental data collected also make it possible to test for the presence of possible differences in the probability that fictitious job seekers will receive a positive response based on the type of advertisement – if the employer states that the job is also suitable for third-country nationals, are Czech job seekers less likely to receive a positive response than foreigners?

On a sample of 10,138 CVs sent, we found that

- for positions designated as suitable for foreigners, the positive response rate was 11.8%;
- for other positions, it reached 27.2%.



The difference of approximately 15% was statistically significant. After taking into account the sector, profession, region and date of sending the email in the regression analysis, the difference decreased to approximately 11%, but remained statistically significant. The effect thus appears across most sectors and professions, except for the health and social care, agriculture and water supply sectors. Among occupations, we found no difference in the positive response rate for skilled agricultural workers (ISCO 6); however, this occupational group is only marginally represented in the economy.

The results suggest that designation of a position as suitable for foreigners may be associated with a structural restriction of access for Czech applicants regardless of their individual characteristics, such as age. This has important implications for interpretation of the data from the database of the Labour Office of the Czech Republic, because part of the advertised positions need not be open to all job seekers – all fictitious job seekers had typical Czech names. This may distort the picture of actual labour market demand based on this database. Thus, the State may not have fully reliable data for planning employment policies.